

Sheet 1

POLE LICENSE AGREEMENT FOR
COMMERCIAL MOBILE RADIO SERVICE ATTACHMENTS

Form 14-986

(To be inserted by utility)

Advice 4001-E
Decision 18-04-007

Issued By
R.O. Nichols
President

(To be inserted by Cal. PUC)

Date Submitted May 14, 2019
Effective Jun 13, 2019
Resolution _____



**POLE LICENSE AGREEMENT FOR
COMMERCIAL MOBILE RADIO SERVICE ATTACHMENTS
BETWEEN**

SOUTHERN CALIFORNIA EDISON

AND

[COMPANY]

POLE LICENSE AGREEMENT FOR COMMERCIAL RADIO SERVICE ATTACHMENTS

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EXHIBITS

- A. LIST OF APPROVED ATTACHMENTS TO POLES
- B. SCHEDULE OF FEES
- C. LICENSEE PARENT GUARANTY

POLE LICENSE AGREEMENT FOR COMMERCIAL RADIO SERVICE ATTACHMENTS

This Pole License Agreement ("Agreement") is made as of _____, 20__ ("Effective Date"), by and between Southern California Edison Company ("SCE"), a California corporation, and _____, a _____ corporation ("Licensee"), individually "Party" and collectively "Parties."

SCE herein provides Licensee, a CMRS (as defined below) telecommunication company certified to provide telecommunications services by the California Public Utilities Commission ("CPUC") and the Federal Communications Commission ("FCC"), with a license to attach certain CMRS equipment to specific distribution or transmission poles that are owned in whole or in part by SCE and used by SCE to provide electricity distribution or transmission services to customers under CPUC approved tariffs.

The terms and conditions of this Agreement are as follows:

1. DEFINITIONS

Terms with the initial letter or letters capitalized, whether in the singular or plural, shall have the following meanings:

- a. Applicable Requirements: Any law, code, regulation, ordinance, statute or requirement of a governmental or quasi-governmental authority, regulatory agency or any other similar authority with jurisdiction or control over access to or use of the Pole, an Attachment, Work on a Pole or operation of an Attachment including, without limit, SCE's tariffs, standards, external manuals (e.g. Non-SCE Antennas Placed on SCE Poles), Request For Access – CMRS (RFA-CMRS) Guidelines and Procedures, and any additional written requirements SCE provides to Licensee, the specifications in the CPUC's Decisions and General Orders, including but not limited to CPUC General Order Nos. 69-C, 95 and 128, and 47 Code of Federal Regulation (C.F.R.).
- b. Attachment: A unit, typically consisting of one or more antennas, the Equipment, and the cable(s) connecting the antennas to the Equipment, that meet the design specifications located at <https://www.sce.com>, and which are owned by Licensee and installed on a Pole within the Licensed Space pursuant to this Agreement.
- c. Common Space: The first 15 to 18 feet of pole space above ground, and below the Electrical Zone, as determined by SCE.
- d. CMRS: Commercial Mobile Radio Service, as defined under Applicable Requirements.
- e. Customer Billing Work Order: SCE initiated work order to collect the cost of work performed by SCE or its contractors for the Licensee.
- f. Distribution Pole: A Pole owned in whole or in part by SCE and used to support electric distribution facilities.
- g. Equipment: All equipment ancillary to an Attachment which is owned and utilized by Licensee in connection with an Attachment.
- h. Electrical Zone: On Poles supporting energized conductors 120 Volts to 33,000 Volts, the Pole space, measured vertically, starting 3 ft. below the lowest conductor level up to 3 ft. above the uppermost conductor level.
- i. Licensed Space: The portion of the Pole, located in the Common Space, Electrical Zone, or in

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the Communication Zone owned in whole or in part by SCE and approved for the Attachment by SCE.

- j. Licensee Parent Guaranty: If applicable, in the event Licensee elects to self-insure pursuant to Section 14.d. of this Agreement. Licensee shall provide a guarantee in the form of Exhibit C, duly executed by the Licensee Parent Company for the benefit of SCE.
- k. Licensee Work: Any Work which Licensee is authorized to perform pursuant to the terms and conditions of this Agreement or which SCE otherwise authorizes Licensee or a Licensee contractor to perform. As provided in the definition of "Work" below, Licensee or its contractor shall not enter or perform Work in the Electrical Zone.
- l. Pole: A Distribution Pole or a Transmission Pole.
- m. Request For Access- CMRS (RFA-CMRS): The SCE form that Licensee is required to complete and submit to SCE in order to request use of a specific Pole under this Agreement.
- n. Routine Maintenance: Periodic tasks performed to enable the continued operation of an Attachment or Equipment in normal use.
- o. SCE Work: Any Work which (i) Licensee is not authorized to perform under this Agreement or which SCE does not otherwise authorize Licensee or a Licensee contractor to perform, such as Work involving access to the Electrical Zone, and (ii) SCE performs on behalf of Licensee. Licensee shall reimburse SCE for the costs incurred in performing SCE Work, as invoiced by SCE.
- p. Transmission Pole: A Pole owned in whole or in part by SCE and used to support electric transmission facilities.
- q. Work: Generally, any installation, maintenance, repair, removal, replacement or other activities relating to an Attachment or Equipment. All Work, including installation, maintenance, removal, repair, replacement or other activities involving access to or entering the Electrical Zone, including those relating to an Attachment located in the Electrical Zone, shall be performed in accordance with the process set forth in the RFA-CMRS, and only by SCE or a contractor approved in advance in writing by SCE, subject to SCE's sole discretion and prior written approval.

2. TERM

The term of this Agreement shall begin on the Effective Date and shall continue through December 31 of that calendar year. The term of this Agreement shall automatically renew on January 1 of the successive calendar year and continue for successive calendar-year terms unless a Party notifies the other Party in writing of its election not to renew the term of this Agreement by October 31 of the then-current calendar year.

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3. APPLICATION PROCESS

Licensee must submit an RFA-CMRS in accordance with SCE's RFA-CMRS Guidelines and Procedures, accompanied with the processing and engineering fee(s) set forth in Exhibit B to request SCE's authorization to make an Attachment to any Pole. Without SCE's written approval, Licensee shall have no rights to make an Attachment to a Pole; to take any action that adversely affects a Pole; to cause an unplanned outage; or to repair, replace, or modify an existing Attachment or Equipment. Subsequent Attachments or Equipment upgrades or replacements are subject to SCE's RFA-CMRS process.

SCE shall notify Licensee in writing as to whether SCE approves the RFA-CMRS submitted by Licensee. SCE makes no representation or warranty whatsoever concerning the time that may be required to process an RFA-CMRS. If SCE approves the RFA-CMRS subject to conditions, Licensee shall have twenty (20) business days after receipt of SCE's notice of conditional approval to accept or reject the Attachment without exception. Unless Licensee notifies SCE in writing that it accepts the Attachment without any exceptions within such twenty (20) business-day period, Licensee will be deemed to have rejected the Attachment.

4. LICENSE RIGHTS FROM APPROVAL OF AN APPLICATION

Upon SCE's acceptance and approval of an RFA-CMRS described in Section 3 above, Licensee shall have a license (i) to perform Licensee Work to install an Attachment and the Equipment in the Licensed Space and to maintain, remove, repair or replace the Attachment and Equipment, and (ii) to operate the Attachment for Wireless communications (collectively, the "Attachment Rights"). Licensee shall have no rights to perform any Work to modify an existing Attachment, including installing additional Equipment, or altering the Pole, or rearranging equipment attached to the Pole, without SCE's prior written approval. Licensee's Attachment Rights shall be, unless otherwise agreed to by SCE, limited to the approved Attachment described in Exhibit A and only for the associated cables and other appurtenances approved by SCE as reasonably necessary for exercise of Licensee's Attachment Rights hereunder. Further, all costs and expenses incurred as a result of Licensee's exercise of any Attachment Right, or due to a request by Licensee for an Attachment hereunder, shall be the sole responsibility of Licensee.

5. CONDITIONS AND RESTRICTIONS ON LICENSE RIGHTS

In addition, and subject to the other terms and conditions of this Agreement, Licensee's exercise of its Attachment Rights granted under Section 4 shall also be subject to the following conditions and restrictions:

- a. Licensee shall operate its Attachment exclusively to provide CMRS services.
- b. Licensee shall be solely responsible for separately obtaining any electric utility or other services required for operation of its Attachment, including any electrical service from SCE.
- c. SCE shall not be required to modify the Pole to accommodate use by the Licensee.
- d. SCE shall have the right to require that only SCE, or its contractor, may install any Licensee Equipment on the Pole, but SCE shall not be required to install any Equipment for the Licensee.
- e. Licensee shall maintain the areas around its Attachment and keep them clean and free from vegetation and tree branches without accessing the Electrical Zone.

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- f. SCE shall not be required to allow Licensee to locate any Equipment on SCE owned property.
- g. Licensee's rights shall be subordinate to all existing uses or rights to use the Pole by SCE or any existing third-party licensees or lessees, and shall not interfere with SCE's utility operations or with the operations of others that are attached to a Pole. Licensee shall switch off all power to any Attachment upon twenty four (24) hours' notice from SCE (which notice SCE may provide by telephone, or e-mail) if required for SCE's utility operations, or immediately upon verbal notice by SCE for safety reasons. If Licensee fails to comply with such notice, SCE shall have the right to switch off or disconnect and lockout all power to the Attachment at Licensee's cost and risk, and without liability to SCE. If an Attachment made under this Agreement interferes with SCE's ability to use a Pole or with a third party's use of a Pole, then Licensee shall remedy the interference within forty-eight (48) hours after Licensee receives written notice from SCE. SCE shall not be liable to Licensee for any interference with an Attachment's operation caused by SCE or a third party.
- h. Licensee shall not, under any circumstances, perform any SCE Work.

6. ATTACHMENT FEES

- a. Licensee shall pay a non-refundable annual license fee for each Attachment ("Annual License Fee"). The initial amount of the Annual License Fee shall be determined by SCE in accordance with Applicable Requirements based on the type and extent of Licensee's Pole use for each Attachment. The current Annual License Fee is \$xx.xx per foot. Not later than November 1 of each year this Agreement is in effect, SCE will calculate the new Annual License Fee and will transmit a written notice to Licensee setting forth the new Annual License Fee taking effect on January 1 of the following year.
- b. Upon approval of an RFA-CMRS for an Attachment, Licensee shall pay the full Annual License Fee for the first calendar year of such Attachment, irrespective of the month in which SCE approves the RFA-CMRS for such Attachment. The total Annual License Fee for all existing Attachments as of January 1 of each calendar year shall equal the number of approved Attachments as of such date.
- c. Reserved.
- d. If SCE terminates the Licensee's right to use a Pole, then SCE will provide Licensee with a refund of any prepaid License Fee, except where the termination is due to a default by the Licensee under this Agreement.
- e. Licensee shall reimburse SCE for the actual amount of any costs reasonably incurred by SCE pursuant to this Agreement, as invoiced by SCE.

7. INSTALLATION, MAINTENANCE, OR REPAIR OF AN ATTACHMENT; REPLACEMENT OF A POLE

- a. Licensee shall use best efforts to perform any Licensee Work in a manner which will not cause any interference or interruption of SCE's utility or other services, or to the use of the Pole by third parties, such as other joint pole owners or SCE licensees. SCE may require Licensee, in SCE's sole discretion to obtain the written consent of any affected customer(s) to the Licensee Work, including the customer's agreement to relieve SCE from any obligation to provide service to the customer(s) until Licensee has successfully completed the Licensee Work. Licensee shall not begin any such Licensee Work until after Licensee receives SCE's written approval.

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- b. All Licensee Work shall be at Licensee's sole risk and cost by persons qualified and licensed by the State of California. Licensee shall be solely responsible for ensuring that the Licensee Work performed fully complies with the requirements in this Agreement.
- c. Licensee shall notify SCE in accordance with Applicable Requirements, including the RFA-CMRS Guidelines and Procedures, before any Licensee Work, other than Routine Maintenance, is scheduled to commence.
- d. The performance of any Licensee Work shall comply with the most stringent of any requirements for such Work as contained in applicable industry standards, specific work requirements imposed by SCE or a third party property-rights holder, or in any Applicable Requirements associated with the Work.
- e. Licensee shall notify SCE in accordance with the RFA-CMRS Guidelines and Procedures within forty-eight (48) hours after Licensee has completed any Licensee Work, including Routine Maintenance, and SCE shall have the right to inspect such Work. If SCE elects to exercise this right, then Licensee shall pay for any inspection fees as part of Licensee's Customer Billing Work Order.
- f. Without restricting SCE's ability to pursue other remedies, SCE may require that any nonconforming Licensee Work be remedied by Licensee or by a third party at Licensee's expense, or terminate Licensee's right to use the Pole if the Licensee Work is not promptly remedied.
- g. Upon written notification from SCE or a government authority that the Attachment or any Equipment is out of compliance with any Applicable Requirement or is unsafe or hazardous, Licensee shall promptly perform whatever Licensee Work is necessary to come into full compliance with such Applicable Requirements or to remedy the unsafe or hazardous condition, as the case may be. Notwithstanding this, if at any time, in SCE's sole judgment, an unsafe or dangerous condition exists, SCE may correct such condition, including the removal or rearrangement of Licensee's Attachment, at the sole risk and expense of Licensee.
- h. In the event SCE determines that Licensee has made an Attachment to a Pole without fully complying with this Agreement (including any Applicable Requirement), SCE may, in addition to pursuing other remedies, require that the Licensee remove its Attachment at Licensee's expense and Licensee shall reimburse SCE for all related costs such as inspection fees and Pole loading calculation fees. Licensee shall pay any penalties authorized by any Applicable Requirement, including the decisions of the California Public Utilities Commission in connection with the unauthorized attachments. Licensee shall also pay for the back rental fees associated with the unauthorized attachment. Payment of any penalties or fees does not affect Licensee's other obligations and liabilities under this Agreement or under any Applicable Requirement. If Licensee fails to remove its unauthorized attachment or an unsafe or dangerous condition exists, SCE may correct such condition, including the removal or rearrangement of Licensee's attachment, at the sole risk and expense of Licensee. At SCE's sole discretion, SCE may permit Licensee's Attachment to remain in place so long as Licensee has met all conditions and requirements determined by SCE, including submitting to SCE, and SCE approving, an RFA-CLEC for such attachment and the payment of all fees, penalties, and costs.
- i. Licensee shall reimburse SCE for any damage to a Pole in connection with the Licensee's exercise of its Attachment Rights.
- j. Licensee shall not make changes to an Attachment or move or rearrange any SCE or third-party attachment or equipment located in the Electrical Zone without SCE's prior written

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agreement. Notwithstanding SCE's prior written permission, any such changes, moving or rearranging shall be at Licensee's sole cost and risk.

- k. In the event that SCE must rearrange any existing SCE or third-party attachments to accommodate a new or modified Attachment by Licensee, then Licensee shall pay SCE's costs for said rearrangement within thirty (30) days of receiving SCE's written request therefor. Licensee understands that SCE may, from time to time, have to rearrange Licensee's Attachments for utility purposes or to permit additional SCE or third-party attachments in the Licensed Space. SCE shall provide written notice to Licensee before Licensee's Attachment is rearranged. When the rearrangement is being made to accommodate new or modified attachments for the provision of SCE's electric utility service, Licensee will, within thirty (30) days of receiving SCE's written request therefor, promptly pay its share of the rearrangement costs, which shall equal SCE's total cost to rearrange non-SCE attachments divided by the total number of attachments that are rearranged.
- l. In the event that SCE, or a joint owner of a jointly owned Pole, must expand or replace an existing Pole to accommodate a new or modified Attachment by Licensee, then Licensee agrees to pay the costs associated with the replacement or expansion of the Pole. If SCE notifies Licensee that an expansion or replacement of a Pole is otherwise needed, then Licensee will fully cooperate with SCE in connection with such changes, including promptly notifying SCE of whether the Licensee desires to maintain its Attachment. If Licensee elects to maintain its Attachment, then SCE shall invoice Licensee for, and Licensee shall pay its costs to maintain its Attachment or Equipment on the Pole expansion or replacement.
- m. Licensee shall reimburse SCE for any inspection fees within thirty (30) days of receiving an invoice from SCE. If SCE identifies any deficiencies as part of the inspection, SCE will provide the Licensee with the inspection results.

8. REMOVAL OF AN ATTACHMENT FROM A POLE

- a. Licensee shall not have the right to perform any Work to remove any Attachment located in the Electrical Zone from a Pole without SCE's prior written approval. Licensee shall submit detailed information to SCE concerning Licensee's plans for removing any Attachment at least thirty (30) days prior to performing any such Work. Provided Licensee has received SCE's written approval of Licensee's plans to remove the Attachment, Licensee may then remove the Attachment after giving SCE at least forty-eight (48) hours prior written notice of the date and time such removal is to begin. Removal of an Attachment from any Pole without SCE's prior written approval (except for purposes of promptly replacing the Attachment with an identical Attachment) shall constitute a termination of Licensee's right to use such Pole and forfeiture by the Licensee of any Annual License Fee paid by the Licensee.
- b. SCE may reclaim any Licensed Space occupied by the Licensee upon written notification to Licensee that the Licensed Space is needed so SCE can provide utility services and there are no other feasible alternatives, in SCE's sole judgment, to meet SCE's utility needs. In the case where SCE has need of existing Licensed Space which is occupied by the Attachment of Licensee, SCE must first give Licensee the option to pay for the cost of the rearrangement or expansion necessary to maintain its Attachment.
- c. SCE has the right, at any time, to remove a Pole from service or to require Licensee to remove its Attachment from a Pole, and nothing in this Agreement shall be construed to limit SCE's rights. SCE may exercise these rights at any time and for any business reason including, without limitation, because Licensee's continued use of the Pole is inconsistent with SCE's use of the Pole or for other business purposes, or with requirements placed on SCE in connection

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with providing electric service or the taking by the power of eminent domain.

- d. Licensee shall perform the Licensee Work to complete removal of its Attachment within thirty (30) days after (i) termination such Attachment or this Agreement, or (ii) SCE's written request to do so, unless a shorter time period is specified by SCE under the circumstances, or a longer time period is mutually agreed upon by both parties. Licensee's removal of its Attachment shall not be considered complete until Licensee has restored the Pole to its original condition, reasonable wear and tear excepted, except where SCE notifies Licensee that restoration is unnecessary because the Pole is being removed from service or SCE agrees otherwise.
- e. SCE shall have the right to inspect and verify Licensee's Work to remove its Attachment. In the event that Licensee does not completely remove its Attachment within the time period specified by SCE, then Licensee shall pay for any costs incurred by SCE as a result of Licensee's failure to remove, including, but not limited to, any inspection, verification, or field visit costs incurred by SCE. Licensee's failure to remove its Attachment within the time period specified by SCE constitutes a material breach under this Agreement.
- f. When a Pole that contains an existing Attachment is relocated or replaced by SCE, and there is a suitable alternative location for a new Pole or an existing Pole which could be used by Licensee for its Attachment, then SCE and the Licensee may agree that Licensee may so use the other location or Pole in accordance with Applicable Requirements and amend Exhibit A to reflect the transfer of Licensee's Attachment Rights; provided, however, that Licensee may need to apply for and obtain electric service pursuant to SCE's tariffs at Licensee's sole expense.
- g. When requested by SCE, Licensee shall certify under penalty of perjury that its Attachment is in service and in use. SCE shall also have the right to inspect and verify whether any Attachments are in service and in use. In the event that SCE determines that any Attachment is not in service and in use, then SCE shall have the right to remove the Attachment at Licensee's sole risk and expense.

9. RESTORATION OR REPAIR OF A POLE

Restoration of SCE's use of a Pole shall take priority over Licensee's restoration of its use; provided, however, that SCE shall not unreasonably delay Licensee's opportunity to restore the use of its Attachment. SCE shall have the right to limit or prohibit any repairs to the Attachment, if SCE, in its sole judgment, determines that such repairs may interfere with SCE's restoration activities. In addition, Licensee shall fully cooperate with SCE if SCE performs any repairs or other work on the Pole, which work may require a temporary shutdown of Licensee's Attachment.

10. THIRD PARTY APPROVALS AND AUTHORIZATIONS

- a. Licensee represents and agrees that in exercising its Attachment Rights, as well as in its performance of its other obligations under this Agreement, Licensee shall comply with any and all Applicable Requirements, as such Applicable Requirements may be supplemented, revised or amended in the future. Licensee further covenants and warrants that it will obtain, maintain and renew during the term of this Agreement, as necessary, any franchises, easements, licenses, permits, certificates, environmental approvals, rights, or grants from state, county, local or regulatory authorities and private owners of the Pole or any real property that are needed for an Attachment or to install any Equipment, as well as to operate or maintain them, within private or public rights-of-way. In addition, Licensee shall secure any needed private or public third party rights to have electric or communication lines related to the operation of its Attachment. Licensee shall also obtain SCE's approval before it submits any permit or other request to a

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governmental entity related to this Agreement. Failure by Licensee to obtain or maintain in full force and effect any required approvals or authorizations shall constitute a material breach of this Agreement. In the event of such breach, SCE may elect to terminate Licensee's Attachment Rights for any affected Pole, upon which Licensee shall perform Licensee Work to remove its Attachment from the Pole within thirty (30) days after such termination, unless SCE notifies Licensee that a shorter time period is required under the circumstances. In the event Licensee fails to remove its Attachment within such timeframe, SCE shall have the right to do so at Licensee's sole risk and expense.

- b. Licensee acknowledges that third parties have rights to portions of a Pole needed by Licensee to access or otherwise use its Attachment, or that a Pole may be located on public or private property not owned by SCE. This Agreement grants only the Attachment Rights expressly conveyed herein, and such rights do not include any rights to use any portions of a Pole not owned by SCE, or any easements or franchise agreements or right of way in, on or over public or private streets (whether within a city or not).
- c. Upon SCE's written request, Licensee shall furnish written proof that it is in compliance with this Section 10. If Licensee fails to provide adequate written proof within fifteen (15) business days of a request by SCE to furnish such proof, or any shorter period required by any regulatory or governmental entity requesting such proof, Licensee shall be in material breach of this Agreement. In addition to any other remedies available to SCE at law or equity, SCE may direct Licensee to perform Licensee Work to promptly remove its Attachment from each Pole for which such proof was sought but not met. Further, SCE reserves the right to remove the Attachment and any Equipment, at Licensee's sole risk and expense, if not removed by the Licensee within forty eight (48) hours of notification to do so. Licensee shall not reinstall its Attachment without written approval from SCE.
- d. Licensee's interest under this Agreement shall be and remain solely a revocable license for an Attachment to a Pole. Any assertion, statement, or claim of rights by Licensee, or that Licensee has acquired an assignment, license, easement, lease, sublease or any form of transfer or conveyance of SCE rights in, on, over, under, along, through or across private or public property, other than a revocable license for an Attachment to the Licensed Space, shall constitute a default under this Agreement.

11. REGULATORY MATTERS

- a. The license granted under this Agreement is subject to CPUC General Order No. 69-C ("G.O.69-C"), which is incorporated by reference herein.
- b. To the extent that this Agreement is subject to the jurisdiction of any regulatory authority, SCE and Licensee acknowledge that this Agreement may be subject to such changes, modifications or termination as that regulatory authority may direct from time to time in the exercise of its jurisdiction. Notwithstanding this, Licensee represents that it is not aware of any facts that would justify a complaint to the CPUC, FCC or any other regulatory authority concerning the prices, terms or conditions of this Agreement.

12. INDEMNIFICATION AND LIMITATION OF LIABILITY

- a. Licensee shall indemnify, defend and hold harmless SCE, its parent company, affiliates, directors, shareholders, invitees, employees, agents, contractors, successors and assigns, from any and all fines, penalties or interest, costs, liabilities, claims and expenses (including fire suppression expenses), related to wildland fires, death or injury to any person or from a loss or damage to any real, personal or other property, caused by, arising from, in connection with, or

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relating to (i) Licensee's breach of any obligation, duty, representation or warranty contained in this Agreement, or (ii) any act or omission by Licensee, or by any of Licensee's employees, agents, contractors, affiliates, or invitees in connection with this Agreement, or (iii) an Attachment, or (iv) any Licensee Work performed by Licensee, its employees, agents, or contractors, or (v) the failure of a Pole on which Licensee has an Attachment including, but not limited to, where the Attachment caused or contributed to, or is alleged to have caused or contributed to, the loading on the Pole to be out of conformance with the requirements of any Applicable Requirement (including, but not limited to, General Order 95), notwithstanding the circumstances that SCE may be alleged or determined to have been contributorily, concurrently, or jointly negligent. The obligations of Licensee under this Section 12 shall arise at such time, if any, that any claim is made, or loss is incurred by SCE, and the entry of judgment or the litigation of any claim shall not be a condition precedent to the obligations of Licensee hereunder.

- b. Licensee shall promptly notify SCE of the existence of any matters to which Licensee's defense and indemnity obligations apply. Licensee shall defend at its own expense with mutually acceptable counsel any such matter; provided that SCE (and its insurers) shall at all times also have the right to fully participate in the defense and consent to any settlement or compromise.
- c. IN NO EVENT SHALL SCE BE LIABLE TO LICENSEE FOR ANY INCIDENTAL, INDIRECT, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES (INCLUDING LOSS OF CUSTOMERS OR GOOD WILL, OR LOST REVENUE OR PROFITS), FOR ANY CAUSE OF ACTION, WHETHER IN CONTRACT OR TORT, ARISING IN ANY MANNER FROM THIS AGREEMENT OR THE PERFORMANCE OR NON PERFORMANCE OF OBLIGATIONS HEREUNDER, REGARDLESS OF THE CAUSE OR FORESEEABILITY THEREOF. FURTHER, SCE'S AGGREGATE LIABILITY SHALL BE LIMITED TO THE TOTAL AMOUNT OF LICENSE FEES RECEIVED BY SCE UNDER THIS AGREEMENT.
- d. In addition, Licensee agrees that SCE shall not be liable for any damage or injury of any kind or nature to any Attachment, Equipment, Poles, fixtures or site improvements of Licensee or to Licensee's employees, agents, servants, or independent contractors or any other third party invitees of Licensee, notwithstanding the circumstances that SCE may be alleged or determined to have been contributorily, concurrently, jointly, independently, or solely negligent (which shall not include gross negligence or willful misconduct) and that this was the direct or proximate cause of any such damage or injury.

13. TITLE AND RISK OF LOSS

- a. SCE's ownership interest in any Pole shall not be affected by Licensee's Attachment to the Pole.
- b. Except as otherwise provided for herein, Licensee shall retain its ownership and all risk of loss of the Attachment and any Equipment at all times.

14. INSURANCE

- a. At all times during the term of this Agreement, Licensee shall maintain at its own expense, and shall require its subcontractors that perform any Licensee Work pursuant to this Agreement to also maintain substantially the same coverage with reasonable and prudent limits as required of Licensee, insurance coverage as described below with insurance companies eligible to do business in the state of California, with an A.M. Best's Insurance Rating of not less than A-, VII. In no way do these minimum insurance requirements limit or relieve Licensee of the obligations assumed elsewhere in the Agreement, including but not limited to Licensee's defense and

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indemnity obligations:

Workers' Compensation Insurance with statutory limits, as required by the state having jurisdiction over Licensee's employees, and Employers' Liability Insurance with limits of:

- (i) Bodily Injury by accident - \$1,000,000 each accident
- (ii) Bodily Injury by disease - \$1,000,000 policy limit
- (iii) Bodily Injury by disease - \$1,000,000 each employee.

Commercial General Liability Insurance, written on an occurrence and not claims-made basis, covering all operations by or on behalf of Licensee arising out of or connected with this Agreement, including coverage for bodily injury; property damage; product/completed operations liability; and contractual liability. Such insurance shall maintain a per occurrence limit of five million dollars (\$5,000,000) per occurrence and five million dollars (\$5,000,000) general aggregate. Such insurance must not exclude coverage due to wildfires or for fire suppression or fire-fighting expenses.

Commercial Automobile Liability Insurance covering all of Licensee's owned, non-owned and hired vehicles with a combined single limit of \$5,000,000 each accident for bodily injury and property damage.

Umbrella/Excess Liability Insurance, written on a following-form (or substantially similar form that is at least as broad as underlying policies) occurrence and not claims-made basis, providing coverage excess of the underlying Employers' Liability, Commercial General Liability, and Commercial Automobile Liability insurance, on terms at least as broad as the underlying coverage, with limits of \$15,000,000 per occurrence and in the aggregate. Licensee may use any combination of primary and excess to meet required total limits.

- b. Primary Insurance/Waiver of Subrogation/Additional Insured. The insurance policies required above shall apply as primary insurance to, without a right of contribution from, any other insurance or self-insurance program maintained by or afforded to SCE, its parent and subsidiaries, and their respective officers, directors, shareholders, agents, and employees, regardless of any conflicting provision in Licensee's policies to the contrary.

To the extent permitted by Applicable Law, Licensee and insurers shall be required to waive all rights of recovery from or subrogation against SCE, its parent and subsidiaries, and their respective officers, directors, shareholders, and employees, and SCE's insurers.

The Commercial General Liability and Umbrella/Excess Liability insurance required above shall include SCE, its parent and subsidiaries, and their respective officers, directors, shareholders and employees, as additional insureds for liability arising out of the acts or omissions of Licensee, or its employees. SCE's additional insured status shall (i) be limited to bodily injury, property damage or personal and advertising injury caused, in whole or in part, by Licensee, its employees, agents or independent contractors; or (ii) not extend to claims for punitive or exemplary damages arising out of the acts or omissions of SCE, its employees, agents or independent contractors or where such coverage is prohibited by law.

- c. Insurance Certificate. At the time the Agreement is executed, and prior to any Attachment or the installation of any Equipment upon a Pole, and within five (5) business days after coverage is renewed or replaced, Licensee shall furnish to SCE certificates of insurance evidencing the coverage required above. All deductibles, co-insurance, and self-insured retentions applicable

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to Licensee's insurance above shall be paid by Licensee. Upon receipt of notice from its insurer(s), Licensee shall use commercially reasonable efforts to provide SCE with at least thirty (30) days' prior written notice in the event of cancellation of required coverage if not replaced. SCE's receipt of certificates that do not comply with the requirements of this Section 14, or Licensee's failure to provide certificates, shall not limit or relieve Licensee of the duties and responsibility of maintaining insurance in compliance with the requirements in this Section 14 and shall not constitute a waiver of any of the requirements in this Section 14. Failure to provide and maintain such insurance shall constitute a default under this Agreement.

- d. Option to Self-Insure. Provided Licensee provides SCE with a Licensee Parent Guaranty from Licensee's Parent Company in the form of Exhibit C, and Licensee Parent Company maintains a Credit Rating of at least "BBB-" by S&P or "Baa3" by Moody's, Licensee may, in its sole discretion, self-insure any of the required insurance under the same terms as required by this Agreement. In the event Licensee elects to self-insure its obligation under this Agreement to include SCE as an additional insured, the following conditions apply: (i) SCE shall promptly and no later than thirty (30) days after notice thereof provide Licensee with written notice of any claim, demand, lawsuit, or the like for which it seeks coverage pursuant to this Section and provide Licensee with copies of any demands, notices, summonses, or legal papers received in connection with such claim, demand, lawsuit, or the like; (ii) SCE shall not settle any such claim, demand, lawsuit, or the like without the prior written consent of Licensee; and (iii) SCE shall fully cooperate with Licensee in the defense of the claim, demand, lawsuit, or the like.

15. TERMINATION RIGHTS

- a. In addition to its other termination rights contained herein, SCE may terminate this Agreement, any Attachment authorized pursuant to this Agreement, or the right to file an RFA-CMRS for a new Attachment, at any time during the term of this Agreement by giving Licensee at least thirty (30) days, or such shorter period as may be required by the CPUC or by any governmental authority or property rights holder, prior written notice to that effect. At the expiration of the thirty (30) day notice period for termination of this Agreement, all rights of Licensee hereunder to use the Pole affected by the notice of termination shall end.
- b. In addition to the preceding termination right, if Licensee defaults in any of its obligations under this Agreement SCE may terminate this Agreement and/or any and all permissions or approvals hereunder pursuant to Section 16 below.
- c. Unless otherwise specified in a notice of termination by SCE, Licensee shall perform Licensee Work to remove the Attachment and restore the Pole, in accordance with Section 8, within thirty (30) days of any termination, cancellation or expiration of its rights to use a Pole.

16. EVENTS OF DEFAULT

- a. In addition to the other events of default specified herein, if Licensee fails to fully perform any of its obligations under this Agreement, then SCE shall have the right to declare such failure to be an event of default hereunder. Licensee will have 30 days from the date of the default to cure the default to SCE's satisfaction, except for a failure by Licensee to fully comply with any Applicable Requirements or where such failure raises safety concerns in SCE's sole judgement.
- b. The occurrence of any of the following events shall constitute an event of default by Licensee hereunder:

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- (i) Licensee files for protection under the Bankruptcy Code of the United States or any similar provisions under the laws for the State of California;
- (ii) Licensee has a receiver, trustee, custodian or similar official appointed for all or substantially all of its business or assets;
- (iii) Licensee makes an assignment for the benefit of its creditors;
- (iv) Licensee makes an Attachment to any Pole without obtaining SCE's prior written approval as required in Section 3 of this Agreement; or
- (v) Licensee makes an Attachment to a Pole without fully complying with all the requirements of this Agreement (including any Applicable Requirement).

In addition to any other rights of SCE hereunder or at law or equity, if the Licensee fails to cure a default to SCE's satisfaction by the end of the cure period specified in section 16.a, then SCE may elect to: (1) cure the event of default at Licensee's sole risk and expense, and Licensee, on demand, will reimburse SCE for the entire expense thereby incurred or (2) terminate the Attachment and require that Licensee remove the terminated Attachment in accordance with Section 8.

- c. In addition to the above remedies for an uncured default, SCE shall have the right to immediately suspend Licensee's ability to make new Attachments pursuant to this Agreement until Licensee establishes the event of default has been cured to SCE's satisfaction.
- d. The above remedies in the event of a default shall not limit SCE's right to seek CPUC authorization to seek suspension or other penalties in the event of multiple or continuing defaults by evoking the expedited dispute resolution process in Section 17.
- e. If SCE fails to comply with a term or condition of this Agreement, Licensee shall provide written notice to SCE of such non-compliance. SCE shall then have thirty (30) days from receipt of such notice to reasonably cure such non-compliance. If such a cure is not completed within the thirty (30) day period, or if a cure is not possible within such thirty (30) day period and SCE has not taken steps to effect such cure, then Licensee may pursue its legal remedies relating to such non-compliance.

17. DISPUTE RESOLUTION

- a. Except as may otherwise be set forth expressly herein, all disputes arising under this Agreement shall be resolved as set forth in this Section 17. To be eligible for resolution under this Section 17, all disputes concerning payments must be invoked within sixty (60) business days of the payment due date.
- b. SCE and Licensee shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement promptly by negotiations between an authorized representative of each of the Parties. Any dispute which cannot be resolved between the authorized representatives shall be referred to an officer or designee, of each of the Parties for resolution. SCE or Licensee may give the other Party written notice of any dispute. Within twenty (20) days after delivery of such notice, the designated parties shall meet at a mutually acceptable time and place, and thereafter as often as they reasonably deem necessary to exchange information and to attempt to resolve the dispute. If the matter has not been resolved within thirty (30) days of the first meeting, the Parties will consider and decide whether the dispute should be submitted to mediation.

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- c. All negotiations and any mediation conducted pursuant to this Section 17 shall be confidential and shall be treated as compromise and settlement negotiations, to which Section 1152.5 of the California Evidence Code shall apply, which section is incorporated in this Agreement by reference.
- d. Notwithstanding the foregoing provisions, either SCE or Licensee may seek immediate equitable relief, a preliminary injunction or other provisional judicial remedy.
- e. SCE and Licensee shall continue to perform their obligations under this Agreement pending final resolution of any dispute arising out of or relating to this Agreement.
- f. If SCE and Licensee, after good faith efforts to resolve a dispute under the terms of this Agreement (as provided in Subpart b above), cannot agree to a resolution of the dispute, either party may pursue whatever legal remedies may be available to such party, at law or in equity, before a court of competent jurisdiction and with venue in Los Angeles County, California.

18. TAXES AND LIENS

- a. Licensee shall pay when due any and all taxes or assessment resulting from any Attachment on any Pole including, but not limited to, special assessments and governmental fees of any kind whatsoever which may be levied or assessed upon any personal property which Licensee has caused to be placed or maintained upon SCE's facilities, or against Licensee's business and shall keep SCE's property and facilities, including any Poles, free from all liens, including but not limited to mechanics liens, and encumbrances by reason of the use, occupancy, or maintenance of SCE's facilities or property by Licensee or by any person claiming under Licensee. It is further agreed that in the event Licensee fails to pay the above-mentioned taxes, assessments, or liens when due, SCE shall have the right to pay the same and invoice Licensee for the amount thereof and Licensee shall pay the same within forty-five (45) days after receiving written demand therefor together with interest at the rate set forth in Section 19 from the date of such expenditure by SCE.
- b. In addition, Licensee shall reimburse SCE for any increases in taxes levied against any Pole directly attributable to an increase in the assessed book or market value of any Pole as a result of the improvements constructed thereon or replacement thereof by Licensee, any fee, tax, or other charge that a federal, state or local government may assess against SCE for occupancy or use of a Pole by Licensee, and any amount of increase in the amount of SCE's tax liability determined by the Internal Revenue Service to result from the attachment of Licensee's Attachment on any Pole (or any modifications to and/or replacements of a Pole by Licensee). SCE shall send Licensee an invoice reasonably documenting any taxes or assessment due hereunder and the Licensee shall reimburse SCE in accordance with Section 19.

19. PAYMENT OF INVOICES

All amounts payable to SCE under the provisions of this Agreement shall, unless otherwise specified, be due and payable within thirty (30) days of the invoice date. If full payment is not received by SCE by the payment due date, then interest shall be charged by SCE on any unpaid amount at the rate of 1.5% per month until payment in full is made. Nonpayment of any amount when due shall constitute a default of this Agreement.

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Payments should be made to SCE at the following address:

Southern California Edison Company
Attn: Joint Pole Organization
14005 Benson Avenue
Chino, California 91710-7026
Email: JPORFAlnbox@sce.com

20. NOTICE

Notices hereunder must be in writing and transmitted by United States mail, electronic mail or by personal delivery to SCE. Such notices shall be deemed given: (a) upon receipt in the case of electronic mail or personal delivery; (b) two (2) days after it is sent by certified mail, with a return receipt requested, (c) three (3) days after deposit in the mail, or the next day in the event of overnight delivery.

If to SCE: Southern California Edison Company
Attn: Joint Pole Organization
14005 Benson Avenue
Chino, California 91710-7026
Email: JPORFAlnbox@sce.com

If to _____:

Attn: _____

Telephone: _____
Fax: _____

21. DISCLAIMER

SCE MAKES NO REPRESENTATION OR WARRANTY WHATSOEVER CONCERNING THE AVAILABILITY, SUITABILITY OR CONDITION OF ANY POLE. SCE MAY DETERMINE, IN ITS SOLE DISCRETION, THAT ANY REQUESTED POLE IS NOT AVAILABLE OR SUITABLE FOR AN ATTACHMENT. FURTHERMORE, IT IS SPECIFICALLY UNDERSTOOD AND HEREBY ACKNOWLEDGED BY LICENSEE THAT ANY POLE MADE AVAILABLE HEREUNDER, TO THE MAXIMUM EXTENT PERMISSIBLE BY LAW, WILL BE PROVIDED BY SCE ONLY ON AN "AS-IS" BASIS AND WITHOUT ANY WARRANTY BY SCE ABOUT THE CONDITION OF THE POLE OR ITS SUITABILITY FOR LICENSEE'S PURPOSES. FURTHER, LICENSEE'S RIGHTS HEREUNDER SHALL BE SUBORDINATE TO SCE'S USE OF THE POLE FOR UTILITY AND OTHER SERVICES AND SUBJECT TO ANY EXISTING USES OF THE POLE AND ANY CONTIGUOUS PROPERTIES.

22. GENERAL PROVISIONS

- a. Maintenance of Records by Licensee. For the term of this Agreement and for one (1) year after its termination, Licensee shall maintain records sufficient to demonstrate to SCE whether Licensee is in full compliance with the requirements of this Agreement. Licensee shall promptly comply with any request by SCE for such records.
- b. Notices, Review or Inspection Rights of SCE. Any notices, review or inspection by SCE, whether made or not, shall not relieve Licensee of any responsibility, obligation, or liability assumed under this Agreement. Licensee further agrees not to hold SCE liable for any loss or

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damages from any notices, review or inspection by SCE, or SCE's failure to notify, review or inspect, and to indemnify SCE under Section 12 from any third-party claim that SCE's notices, review or inspection, or failure to notify, review or inspect resulted, directly or indirectly, in any loss or damage.

- c. California Law. This Agreement, and performance pursuant to it, shall be governed, interpreted, construed, and regulated by the laws of the State of California, without reference to its conflicts of laws provisions.
- d. Assignment. SCE may sell, convey, assign or otherwise transfer, in whole or in part, its interest in this Agreement at any time without the consent of Licensee. Licensee may not assign, transfer, sublease, or sublet any right, obligation, or privilege given to it hereunder. Subject to the foregoing, this Agreement shall inure to the benefit of and be binding upon the respective successors and assigns of the parties hereto.
- e. Interpretation. The language of each part of this Agreement shall be construed simply and according to its fair meaning, and shall not be construed either for or against either Party.
- f. Nature of Rights. Nothing in this Agreement shall obligate SCE to grant Licensee permission to use any Poles in the future or to provide permission to use other Poles under the same terms and conditions as set forth in this Agreement. Nothing in this Agreement shall preclude SCE from granting any third-party permission to use available capacity on a Pole in ways that do not interfere with the rights granted to Licensee under this Agreement.
- g. Invalidity of Provisions. To the extent that any terms or provisions of this Agreement shall be finally determined by a court of competent jurisdiction to be invalid, (i) such invalidity shall not affect, release or modify any other terms or provisions, and (ii) in lieu of each such provision which is invalid, illegal or unenforceable, there shall be substituted or added as part of this Agreement a legal, valid and enforceable provision which shall be selected to be as similar as possible, in achieving the economic and business objectives of the Parties, to such illegal, invalid or unenforceable provision.
- h. Non-Waiver. The failure of SCE to enforce any provision of this Agreement or the waiver thereof in any instance, shall not be construed as a general waiver or relinquishment on its part of any such provision but the same shall nevertheless be and remain in full force and effect.
- i. Incorporation Clause. This Agreement, including attached Exhibits, incorporate all the covenants and understandings between SCE and Licensee regarding the subject matter of this Agreement. No other verbal agreements or understandings exist between the Parties nor shall any be binding upon either SCE or Licensee unless reduced to writing and signed by the Parties. Any addition, variation or modification to this or any other Agreement shall be ineffective unless made in writing and signed by the Parties.
- j. Radio Frequency Emission ("RFE") Compliance. Licensee shall be responsible, at its sole cost and expense, for ensuring compliance with all regulations relating to RFE. Licensee shall provide SCE with site-specific RFE exposure guidelines for personnel working in proximity to an Attachment, and a certificate that the Attachment, when analyzed in conjunction with any other Equipment at or near the Pole, will be in compliance with any applicable RFE standards. Such certificate shall be prepared by a qualified radio frequency engineer at least thirty (30) days prior to initiation of the installation. If Licensee desires to make any changes to its Attachment, then Licensee shall provide SCE with a new certificate at least thirty (30) days prior to such change. SCE will cooperate with Licensee, where possible, to allow Licensee to place required signage on a Pole where this is necessary to comply with RFE regulations. In addition,

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Licensee shall use its best efforts to minimize the RFE impact on health of workers and on future uses of the Pole.

- k. Reserved.
- l. Performance in Stead. Should Licensee fail to make any payment or perform any act or obligations required under this Agreement, then SCE, at its option (without any obligation to do so and without releasing Licensee from any consequences hereunder due to its failure to perform as required hereunder) may: (i) make such payment or perform such act or obligation in such manner and to such extent as SCE may deem necessary to protect SCE's rights; (ii) commence, appear in and defend any action or proceeding purporting to affect SCE's rights or interests; (iii) pay, purchase, contest or compromise any encumbrance, charge or lien which, in the sole judgment of SCE affects or may affect SCE's rights or interests; and (iv) in exercising any such powers, incur any liability and expend such reasonable amounts as SCE, in its sole discretion, may deem necessary. Licensee shall promptly reimburse, defend, and indemnify SCE against all liability, loss, cost or expense arising from its performance pursuant to this provision.
- m. Exhibits. Exhibits referenced herein are incorporated by said reference and may only be modified as described herein or by a written agreement of the Parties. Specifically included as exhibits to this Agreement hereto are:
 - Exhibit A: List of Approved Attachments to Poles
 - Exhibit B: Schedule of Fees
 - Exhibit C: Licensee Parent Guaranty
- n. Confidentiality. Notwithstanding any language to the contrary in any applicable non-disclosure or confidentiality agreement between the Parties, SCE may, without the prior consent of the Licensee, provide confidential or proprietary information related to this Agreement to a governmental or regulatory entity that requests such information.

SIGNATURES

By signing below, the signatories hereto represent and warrant that they have been duly authorized to sign this Agreement on behalf of the Party for whom they sign.

[LICENSEE], a _____

**SOUTHERN CALIFORNIA EDISON COMPANY, a
California corporation**

By: _____
Print
Name: _____
Title: _____
Date: _____

By: _____
Name: _____
Title: _____
Date: _____

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EXHIBIT A

LIST OF APPROVED ATTACHMENTS TO POLES

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EXHIBIT B

SCHEDULE OF FEES

Licensee shall remit a \$3,000 engineering advance with each RFA-CMRS. SCE shall provide Licensee a receipt for such advance within seven (7) business days. The amount of the engineering advance is subject to increase by SCE at any time. SCE will apply the engineering advance to the cost of the work order; and SCE will return any unused portion of the engineering advance to Licensee only if the Licensee's work is completed within twelve (12) months of the RFA-CMRS submittal. Any RFA-CMRS submitted by Licensee to attach to the same Pole after expiration of the above 12-month period will also require the submittal of a new engineering advance.

Licensee shall remit one check to cover process fee(s) with each RFA-CMRS application package, which are currently set at \$XX.XX per Pole. The process fee(s) are non-refundable and subject to increase by SCE.

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EXHIBIT C

LICENSEE PARENT GUARANTY

1. **Licensee Parent Guaranty.** For valuable consideration, _____ [Licensee Parent Guarantor's legal name] [legal status] ("**Licensee Parent Guarantor**") unconditionally and irrevocably guarantees to Southern California Edison Company, a California corporation ("**Beneficiary**"), its successors and assigns, the full, prompt and faithful payment when due of all obligations of [Licensee's legal name], [legal status] ("**Principal**") under that certain Pole License Agreement for Competitive Local Exchange Carrier Attachments between Beneficiary and Principal dated [date], as amended from time to time ("Agreement") (collectively, the "**Obligations**") and agrees that if for any reason Principal shall fail to pay when due any of such Obligations, Licensee Parent Guarantor will pay the same forthwith.

2. **Deficiencies in Payment or Performance.** This Licensee Parent Guaranty ("Guaranty") is a guarantee of payment continuing until completion of Principal's obligations as set forth in the Agreement. If Principal fails or refuses to pay all or any portion of the Obligations, or if any other event of default as set forth in the Agreement occurs (beyond applicable notice and cure periods), the Beneficiary may make a demand upon the Licensee Parent Guarantor. Such demand shall be in writing and shall state the default or the amount Principal has failed to pay and an explanation of why such payment is due, with a specific statement that Beneficiary is calling upon Licensee Parent Guarantor to pay under this Guaranty. Licensee Parent Guarantor shall promptly, but in no event less than fifteen (15) Business Days following receipt of a written demand from Beneficiary, pay such Obligations in immediately available funds in accordance with the terms of the Agreement. The obligations of Licensee Parent Guarantor hereunder shall not be subject to any counterclaim, setoff, withholding, or deduction unless required by applicable law or under the terms of the Agreement. A written demand satisfying the foregoing requirements shall be deemed sufficient notice to Licensee Parent Guarantor that it must pay the Obligations.

3. **Licensee Parent Guaranty Absolute.** Subject to Section 3 of this Guaranty, Licensee Parent Guarantor agrees that its obligations under this Guaranty are irrevocable, absolute, independent and unconditional and shall not be affected by any circumstance which constitutes a legal or equitable discharge of a guarantor. In furtherance of the foregoing and without limiting the generality thereof, Licensee Parent Guarantor agrees as follows:

- (a) The liability of Licensee Parent Guarantor under this Guaranty is a continuing guaranty of payment and not of collectability, and is not conditional or contingent upon the genuineness, validity, regularity or enforceability of the Agreement or the pursuit by Beneficiary of any remedies which it now has or may hereafter have under the Agreement;
- (b) Beneficiary may enforce this Guaranty notwithstanding the existence of a dispute between Beneficiary and Principal with respect to the existence of the default;
- (c) The obligations of Licensee Parent Guarantor under this Guaranty are independent of the obligations of Principal under the Agreement and a separate action or actions may be brought and prosecuted against Licensee Parent Guarantor whether or not any action is brought against Principal or any other guarantors and whether or not Principal is joined in any such action or actions; and
- (d) Licensee Parent Guarantor shall continue to be liable under this Licensee Parent Guaranty and the provisions hereof shall remain in full force and effect notwithstanding:

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- (i) Any modification, amendment, supplement, extension, agreement or stipulation between Principal and Beneficiary or their respective successors and assigns, with respect to the Agreement or the obligations encompassed thereby; provided that in the event the Obligations under the Agreement are modified, amended, supplemented or otherwise altered, the same shall be incorporated in and applicable to this Guaranty;
- (ii) Beneficiary's waiver of or failure to enforce any of the terms, covenants or conditions contained in the Agreement;
- (iii) Any release of Principal or any other guarantor from any liability with respect to the Obligations or any portion thereof;
- (iv) Any furnishing to Beneficiary of collateral for any Obligation or any exchange, release, failure to preserve, waste, deterioration, sale or disposition of any collateral, including any release, compromise or subordination of any real or personal property then held by Beneficiary as security for the performance of the Obligations or any portion thereof, or any substitution with respect thereto;
- (v) Without in any way limiting the generality of the foregoing, if Beneficiary is awarded a judgment in any suit brought to enforce a portion of the Obligations, such judgment shall not be deemed to release Licensee Parent Guarantor from its covenant to pay that portion of the Obligations which is not the subject of such suit;
- (vi) Beneficiary's acceptance and/or enforcement of, or failure to enforce, any other guaranties or any portion of this guaranty;
- (vii) Beneficiary's exercise of any other rights available to it under the Agreement;
- (viii) Beneficiary's consent to the change, reorganization or termination of the corporate structure or existence of the Principal and to any corresponding restructuring of the Obligations;
- (ix) Any insolvency of Principal, or any other guarantor or any proceeding, voluntary or involuntary, involving the bankruptcy, insolvency, receivership, reorganization, arrangement, dissolution or liquidation of Principal or any other guarantor or any defense which Principal, or any other guarantor may have by reason of the order, decree or decision of any court or administrative body resulting from any such proceeding, or Principal making a general assignment for the benefit of its creditors or admitting in writing its inability to pay its debts as they become due;
- (x) Any defense based upon any taking, modification or release of any collateral for the Obligations, any failure to perfect or continue perfection of a security interest in any collateral that secures the Obligations;
- (xi) Any defenses, setoffs or counterclaims that Principal may allege or assert against Beneficiary with respect to the Obligations, including, without limitation, failure of consideration, breach of warranty, statute of frauds, statute of limitations and accord and satisfaction, subject to Licensee Parent Guarantor's right to assert any such defenses, setoffs or counterclaims as set forth in Subsection (e) below;

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- (xii) Any rights or defenses based upon an offset by the Licensee Parent Guarantor against any obligation now or hereafter owed to the Licensee Parent Guarantor by Principal; and
 - (xiii) Any other act or thing or omission, or delay to do any other act or thing that might in any manner or to any extent vary the risk of Licensee Parent Guarantor as an obligor with respect to the Obligations and, except to the extent expressly set forth herein, any other circumstance which might otherwise constitute a defense against, or a legal or equitable discharge of Licensee Parent Guarantor's liability under this Guaranty.
- (e) Licensee Parent Guarantor will not have any greater liability under this Guaranty with respect to the Obligations and matters arising under the Agreement than Principal has under the Agreement, and Licensee Parent Guarantor will have the right to avail itself of and reserves the right to assert any and all defenses, counterclaims and setoffs, releases and limitations of liability, that are available to Principal under the Agreement, except for defenses arising out of bankruptcy, insolvency, dissolution or liquidation of Principal.

4. **Termination; Reinstatement.** The term of this Licensee Parent Guaranty is continuous until the date on which the Obligations have been fully performed or paid in full. No such notice or termination shall release Licensee Parent Guarantor from any liability as to any amount or performance that is owing under the Agreement as of the termination date. This Guaranty shall be reinstated if at any time following the termination of this Guaranty, any payment by Licensee Parent Guarantor under this Guaranty or pursuant hereto is rescinded or must otherwise be returned by the Beneficiary or other person upon the insolvency, bankruptcy, reorganization, dissolution or liquidation of Principal, Licensee Parent Guarantor or otherwise, and is so rescinded or returned to the party or parties making such payment, all as though such payment had not been made. If all or any portion of the Obligations are paid by Principal, the obligations of Licensee Parent Guarantor hereunder shall continue and remain in full force and effect or be reinstated, as the case may be, in the event that all or any part of such payment(s) are rescinded or recovered directly or indirectly from Beneficiary as a preference, fraudulent transfer or otherwise, and any such payments which are so rescinded or recovered shall constitute Obligations for all purposes under this Guaranty.

5. **Bankruptcy; Post-Petition Interest.** So long as any Obligations remain outstanding, Licensee Parent Guarantor shall not, without the prior written consent of Beneficiary, commence or join with any other person in commencing any bankruptcy, reorganization or insolvency proceedings of or against Principal. The obligations of Licensee Parent Guarantor under this Guaranty shall not be reduced, limited, impaired, discharged, deferred, suspended or terminated by any proceeding, voluntary or involuntary, involving the bankruptcy, insolvency, receivership, reorganization, liquidation or arrangement of the Principal or by any defense which Principal may have by reason of the order, decree or decision of any court or administrative body resulting from any such proceeding. Any interest on any portion of the Obligations which accrues after the commencement of any such proceeding (or, if interest on any portion of the Obligations ceases to accrue by operation of law by reason of the commencement of said proceeding, such interest as would have accrued on such portion of the Obligations if said proceedings had not been commenced) shall be included in the Obligations. Licensee Parent Guarantor will permit any trustee in bankruptcy, receiver, debtor in possession, assignee for the benefit of creditors or similar person to pay Beneficiary, or allow the claim of Beneficiary in respect of, any such interest accruing after the date on which such proceeding is commenced.

6. **Subrogation.** Licensee Parent Guarantor shall be subrogated to all rights of the Beneficiary against Principal with respect to any amounts paid by the Licensee Parent Guarantor pursuant to the Guaranty, provided that Licensee Parent Guarantor postpones all subrogation rights until all Obligations have been irrevocably paid in full to the Beneficiary. Beneficiary agrees to take, at the expense of Licensee Parent Guarantor, such steps as Licensee Parent Guarantor reasonably requests to implement such subrogation. If any amount shall be paid to Licensee Parent Guarantor on account of such subrogation, reimbursement,

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contribution or indemnity rights at any time when all the Obligations guaranteed hereunder shall not have been performed or indefeasibly paid in full, Licensee Parent Guarantor shall hold such amount in trust for the benefit of Beneficiary and shall promptly pay such amount to Beneficiary.

7. **Waivers of Licensee Parent Guarantor.**

- (a) Licensee Parent Guarantor waives, to the fullest extent permitted by law, the benefit of any statute of limitations affecting its liability under this Guaranty or the enforcement hereof.
- (b) Licensee Parent Guarantor assumes all responsibility for keeping itself informed of Principal's financial condition and all other factors affecting the risks and liability assumed by Licensee Parent Guarantor hereunder, and Beneficiary shall have no duty to advise Licensee Parent Guarantor of information known to it regarding such risks.
- (c) Licensee Parent Guarantor waives any defense arising by reason of the incapacity, lack of authority or any disability or other defense of the Principal, including, without limitation, any defense based on or arising out of the lack of validity or enforceability of the Obligations or by reason of the cessation of liability of the Principal under the Agreement for any reason but full performance or payment;
- (d) Licensee Parent Guarantor waives any defense based upon Beneficiary's non-material errors or omissions in the administration of the Obligations;
- (e) Licensee Parent Guarantor waives its right to raise any defenses based upon promptness, diligence, and any requirement that Beneficiary protect, secure, perfect or insure any security interest or lien or any property subject thereto;
- (f) Licensee Parent Guarantor waives its right to raise any principles of law, statutory or otherwise, that limit the liability of or exonerates sureties or guarantors, provide any legal or equitable discharge of Licensee Parent Guarantor's obligations hereunder, or which may conflict with the terms of this Licensee Parent Guaranty;
- (g) Other than demand for payment, the Licensee Parent Guarantor hereby expressly waives all notices between the Beneficiary and the Principal including without limitation all notices with respect to the Agreement and this Licensee Parent Guaranty, notice of acceptance of this Guaranty, any notice of credits extended and sales made by the Beneficiary to Principal, any information regarding Principal's financial condition, and all other notices whatsoever; and
- (h) Licensee Parent Guarantor waives filing of claims with a court in the event of the insolvency or bankruptcy of the Principal.

8. **No Waiver of Rights by Beneficiary.** No right or power of Beneficiary under this agreement shall be deemed to have been waived by any act or conduct on the part of Beneficiary, or by any neglect to exercise a right or power, or by any delay in doing so, and every right or power of Beneficiary hereunder shall continue in full force and effect until specifically waived or released in a written document executed by Beneficiary and Licensee Parent Guarantor.

9. **Assignment, Successors and Assigns.** This Guaranty shall be binding upon Licensee Parent Guarantor, and Beneficiary, their respective successors and assigns, and shall inure to the benefit of, and be enforceable by, the Beneficiary, its successors, assigns and creditors. The Beneficiary shall have the right to assign this Guaranty to any person or entity without the prior consent of the Licensee Parent Guarantor; *provided, however,* that no such assignment shall be binding upon the Licensee Parent Guarantor until it receives written notice of such assignment from the Beneficiary. The Licensee Parent Guarantor shall have no

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right to assign this Guaranty or its obligations hereunder without the prior written consent of the Beneficiary.

10. **Representations of Licensee Parent Guarantor.** Licensee Parent Guarantor hereby represents and warrants that: (a) it is a corporation duly organized, validly existing and in good standing under the laws of [insert jurisdiction of formation] and has full power and authority to execute, deliver and perform this Licensee Parent Guaranty; (b) it has taken all necessary actions to execute, deliver and perform this Guaranty; (c) this Guaranty constitutes the legal, valid and binding obligation of Licensee Parent Guarantor, enforceable in accordance with its terms, subject to bankruptcy, insolvency, reorganization, moratorium and other similar laws effecting creditors' rights generally and to general equitable principles; (d) execution, delivery and performance by Licensee Parent Guarantor of this Guaranty does not conflict with, violate or create a default under any of its governing documents, any agreement or instruments to which it is a party or to which any of its assets is subject or any applicable law, rule, regulation, order or judgment of any Governmental Authority; (e) all consents, approvals and authorizations of governmental authorities required in connection with Licensee Parent Guarantor's execution, delivery and performance of this Guaranty have been duly and validly obtained and remain in full force and effect; and (f) there are no actions, suits or proceedings pending or, to the best of the knowledge of Licensee Parent Guarantor, threatened against or affecting Licensee Parent Guarantor before any Government Authority of which there is a likelihood that the outcome will materially and adversely affect its ability to perform its obligations hereunder.

11. **Financial Information.** If requested by Beneficiary, Licensee Parent Guarantor, shall: (a) deliver within 120 days following the end of each fiscal year that any Principal's Obligations are outstanding, a copy of its annual report containing its audited consolidated financial statements (income statement, balance sheet, statement of cash flows and statement of retained earnings and all accompanying notes) for such fiscal year, setting forth in each case in comparative form the figures for the previous year and (b) such financial statements shall be [if Licensee Parent Guarantor is an Securities and Exchange reporting company: certified in accordance with all applicable laws and regulations, including without limitation all applicable Securities and Exchange Commission rules and regulations] or [if Licensee Parent Guarantor is not an Securities and Exchange Commission reporting company: certified by a Responsible Officer as being fairly stated in all material respects (subject to normal year-end audit adjustments)]. For purposes of this Section, "Responsible Officer" shall mean the Chief Financial Officer, Treasurer or any Assistant Treasurer of Licensee Parent Guarantor or any employee of Licensee Parent Guarantor designated by any of the foregoing] provided, however, for purposes of subsection (a) if Licensee Parent Guarantor's financial statements are publicly available electronically on the Securities and Exchange Commission's or Licensee Parent Guarantor's website and otherwise meet the requirements of subsections (a) and (b), then Licensee Parent Guarantor shall be deemed to have met the delivery requirement of subsection (a) upon delivery of a notice to Beneficiary of the availability and location of such filing. In all cases the statements shall be for the most recent accounting period and prepared in accordance with U.S. "GAAP" (generally accepted accounting principles) or International Financial Reporting Standards ("IFRS").

12. **Governing Law.** This Guaranty is made under and shall be governed in all respects by the laws of the State of California, without regard to conflict of law principles. If any provision of this Guaranty is held invalid under the laws of California, this Guaranty shall be construed as though the invalid provision has been deleted, and the rights and obligations of the parties shall be construed accordingly. With respect to any suit, action, or proceedings relating to any dispute arising out of or in connection with this Guaranty ("Proceeding"), each party irrevocably: (i) submits to the exclusive jurisdiction of the courts of the state of California and the United States District Court located in Los Angeles, California; and (ii) waives any objection which it may have at any time to the laying of venue of any Proceeding brought in any such court, waives any claim that such Proceedings have been brought in an inconvenient forum and further waives the right to object, with respect to such Proceedings, that such court does not have any jurisdiction over such party. [IF LICENSEE PARENT GUARANTOR IS AN ENTITY NOT DOMICILED IN THE U.S.: Licensee Parent Guarantor irrevocably appoints the following ("Process Agent") to receive, for it and on its behalf, service of process in any Proceedings:

_____ If for any reason Licensee Parent Guarantor's Process Agent is unable to act as such, Licensee Parent Guarantor will promptly notify Beneficiary and within 30 days appoint a

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substitute process agent acceptable to Beneficiary.] Licensee Parent Guarantor irrevocably consents to service of process given in accordance with Section 17 of this Guaranty. Nothing in this Guaranty will affect the right of either party to serve process in any other manner permitted by applicable law.

13. **Waiver of Jury Trial.** Licensee Parent Guarantor hereby irrevocably and unconditionally waives any and all right to trial by jury in any action, suit or counterclaim arising out of or in connection with this Guaranty.

14. **Construction.** All parties to this Licensee Parent Guaranty are represented by legal counsel. The terms of this Licensee Parent Guaranty and the language used in this agreement shall be deemed to be the terms and language chosen by the parties hereto to express their mutual intent. This Licensee Parent Guaranty shall be construed without regard to any presumption or rule requiring construction against the party causing such instrument or any portion thereof to be drafted, or in favor of the party receiving a particular benefit under this Licensee Parent Guaranty. No rule of strict construction will be applied against any party.

15. **Amendment; Severability.** Neither this Licensee Parent Guaranty nor any of the terms hereof may be terminated, amended, supplemented or modified, except by an instrument in writing executed by an authorized representative of each of Licensee Parent Guarantor and Beneficiary. If any provision in or obligation under this Licensee Parent Guaranty shall be invalid, illegal or unenforceable in any jurisdiction, the validity, legality and enforceability of the remaining provisions or obligations, or of such provision or obligation in any other jurisdiction, shall not in any way be affected or impaired thereby.

16. **Third Party Rights.** This Licensee Parent Guaranty shall not be construed to create any rights in any parties other than Licensee Parent Guarantor and Beneficiary and their respective successors and permitted assigns.

17. **Notices.** Any demand for payment or performance, notice, request, instruction, correspondence or other document to be given hereunder by any party to another shall be made by facsimile to the person and at the address for notices specified below.

Beneficiary:

Southern California Edison Company
2244 Walnut Grove Avenue
Rosemead, CA 91770
Attn: [Credit Manager]
Phone: (626) ____-____
Facsimile: (626) ____-____

With copy to:

Southern California Edison Company
2244 Walnut Grove Avenue
Rosemead, CA 91770
Attn: [_____]_____
Phone: (626) ____-____
Facsimile: (626) ____-____



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Licensee Parent Guarantor:

[Licensee Parent Guarantor]
[Street]
[City, State Zip]
Attn:
Phone:
Facsimile:

Principal:

[Principal]
[Street]
[City, State Zip]
Attn:
Phone:
Facsimile:

Such notice shall be effective upon confirmation of the actual receipt if received during the recipient's normal business hours, or at the beginning of the recipient's next Business Day after receipt if receipt is outside of the recipient's normal business hours. Either party may periodically change any address to which notice is to be given it by providing notice of such change as provided herein.

IN WITNESS WHEREOF, Licensee Parent Guarantor has executed this Licensee Parent Guaranty as of

_____, ____.

By: _____

Name: _____

Title: _____